

HOUSE No. 5286

The Commonwealth of Massachusetts

PRESENTED BY:

Brian W. Murray

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to specific medical diagnoses regarding the Department of Children and Families.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>3/9/2026</i>

HOUSE No. 5286

By Representative Murray of Milford, a petition (subject to Joint Rule 12) of Brian W. Murray relative to specific medical diagnoses of certain children involved with the Department of Children and Families. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to specific medical diagnoses regarding the Department of Children and Families.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 51B of chapter 119 of the General Laws, as appearing in the 2024 Official
2 Edition, is hereby amended by inserting after subsection (b) the following subsection:-

3 (b½) If the parent, guardian or other caretaker provides evidence that the child has a
4 preexisting diagnosis of rickets, Ehlers-Danlos syndrome, osteogenesis imperfecta, vitamin D
5 deficiency or any other medical condition known to appear or be caused by, or known to be
6 misdiagnosed as, abuse, the department shall consult with a physician or advanced practice
7 registered nurse who routinely provides medical care to pediatric patients. If the physician or
8 registered nurse deems it appropriate, they may conduct an examination of the child to advise on
9 whether the symptoms of suspected abuse or neglect are likely to have been caused by a medical
10 condition. No consultation or examination shall be requested or performed pursuant to this
11 subsection for the purpose of obtaining a second opinion as to whether a child has been sexually
12 abused.